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Annexure-I

CRM/9678/2025
PB SAO 300 9683201

Court of Chief Judicial Magistrate

Applicant (name/address/age) Tushar Gautam s/o Chetan Kumar # 251-252,
Modern Valley, Khanpur, Kharar, SAS Nagar,
VERSUS US:- CRM/4630/25

GOVERNMENT OF PUNJAB

Sub:- Application under Section 503 BNSS for release/refund of amount freeze in the bank.

I Tushar Gautam resident of # 251-252, Modern Valley
Khanpur, Kharar, SAS Nagar, Punjab aged 23 do hereby
solemnly affirmed and declare as under:

1. That, I am the petitioner/complainant in the aforementioned case.
2. That, I am living at the aforementioned residence with my family.
3. That we live and do work to support the family.
4. That a cyber-crime was committed against me in which my bank account No. 55056131699 having an amount of Rs. 1,37,500/- had taken off.
5. That against the aforementioned crime, I have registered complaint by calling on Toll Free No. 1930 and the same was registered on (dated) 26-10-24 under acknowledgment No. 22510240014800
6. That the Cyber Crime Police has frozen the bank account of the accused and seized an amount of Rs. 1,37,500/- out of the total deposit in the bank account of accused as per Section 106 of BNSS.
7. That the amount of Rs. 1,37,500/- (which was seized by the police) is still lying in the bank and has not been returned to me.
8. That FIR in this regard has not been registered so far.
9. That I have been suffering from huge financial loss due to the aforementioned incidence and, therefore, request the Hon'ble Court to issue appropriate order as per Section 503 BNSS to return the seized amount through my account which is very necessary for my livelihood.
10. That the details of my bank account as well as bank account of the accused are as under.

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Tushar Gautam Vs. State of Punjab

CRM-4630-2025

Present:- Applicant in person.
Learned APP for the State along-with IO.

Heard on application filed U/s 503 BNSS by applicant Tushar Gautam for release of frozen amount as stated in the application and reply of IO. The perusal of documents show that applicant has been defrauded to the tune of ₹1,37,500/- and ₹2,84,000/- by way of cyber fraud and he has filed a complaint on Toll Free No.1930 and it has been registered with acknowledgment No.22510240019800. During investigation, an amount of ₹1,37,500/- and ₹50,920/- (including the amount of complainant) has been put on hold by the office of National Cyber crime which has been got transferred fraudulently from the bank account of applicant. Lastly, prayed that directions be issued to concerned authority for releasing the freezed amount to the applicant.

2. In response to the said application, reply by SHO, PS Cyber Crime, District SAS Nagar, Mohali has been received. Further, SC Harmandeep Singh No. 2274/SAS Nagar has appeared and suffered a stated that an amount of ₹1,37,500/- can be released to complainant in his account no. 55056131699 of SBI Bank from the account no. 50420200000557 of Bank of Baroda. Further, an amount of ₹50,920/- can be released to the complainant in his account no. 55056131699 of SBI Bank from the account no. 50200100897455 of HDFC Bank. Police has no objection, if the said freezed amount is released to applicant. During inquiry, the trail of amount transferred from account of complainant is as follows:-

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Sr. No.	Account No.	Bank Name	Amount freezed	Amount to be released
1.	50420200000557 of RS Enterprises	Bank of Baroda	₹1,37,500/-	₹1,37,500/-
2.	50200100897455 of Atik Trade	HDFC Bank	₹50,920/-	₹50,920/-

[Signature]

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3. During the investigation, no objection has been raised by the Investigating Officer or holder of this account till date for releasing the above stated amount in the favour of complainant/applicant. In view of the statement of IO, the application under Section 503 BNSS is hereby **allowed** and amount of ₹1,88,420/- is ordered to be released to Tushar Gautam from account number as stated in the above table as interim custody subject to the terms and conditions mentioned herein below:-

1. Furnishing Indemnity Bonds of ₹2,00,000/- with one surety by Tushar Gautam in the Court.
2. The applicant will have to produce the frozen amount before the Hon'ble Court, if so required by the Court;
3. If the above mentioned account holder or any other person claims the said amount and proves his interest, in that eventuality, the applicant will have to return the said amount;
4. The said frozen amount should not be used or allowed to be used for any criminal purpose;
5. In the event of breach of any of the condition, the interim order stands automatically canceled and the frozen amount shall be confiscated again and amount of Indemnity Bonds shall be recovered.

4. The police officer of concerned police station is required to apprise the concerned bank about the aforementioned process as well as order of the Court. It is also ordered that after receiving the information from the concerned police station about the orders of the Court as well as the entire process of furnishing of indemnity bonds, the bank shall ensure the compliance of the Order of this Court under intimation to the Court.

5. Further, the concerned bank shall confirm that alleged amount was deposited in the account of accused from the bank account of applicant and

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[Signature]

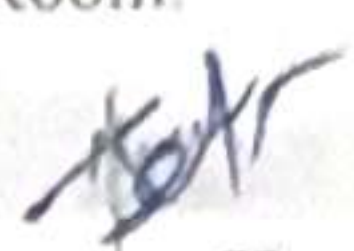
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concerned bank shall return the amount in the same account from which it has been withdrawn. File be consigned to Record Room.

Dated: 15.11.2025

Vikas Kohli

Judgment Writer
(Directly Dictated)


(Manpreet Kaur-II)
JMIC/SAS Nagar (Mohali)
UID No.PB0403



167/7-1-25

Compared By:
Prepared By:

Sandeep
Chahal

Date of Application
Name of Applicant
Name of Copyist: Chahal
Number of Pages: 18
Date of Preparations: 15 JAN 2026
Date of Delivery: 16-1-26

Attested to be true copy

Incharge Copying Agency
C.J. (S.D.)-cum-C.J.M.
MOHALI

15 JAN 2026

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Applicant (name/address/age)

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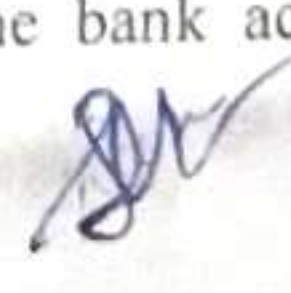
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Vikas Kohli

Judgment Writer
(Directly Dictated)


(Manpreet Kaur-II)
JMIC/SAS Nagar (Mohali)
UID No. PB0403



Compared By: Sandeep
Prepared By: Chand

16/11/25
Date of Application

Name of Applicant: _____

Name of Copyist: Chand

Urgent Sees: _____

No. of Pages: 4

Date of Preparations: 15 JAN 2026

Date of Delivery: 16-12-25

Attested to be true copy

Incharge Copying Agency
CJ (S.D.)-cum-CJ.M.
MOHALI

15 JAN 2026